



CONSTITUTION FOR The Friends of Jacob Smith Park

Introduction. In 2008 Harrogate Borough Council took the initiative of calling a meeting of local people and organisations who have an interest in Jacob Smith Park in Scriven, Knaresborough to discuss ways in which their facilities, management and operation might be improved. There was support for the Council's initiative and as a result The Friends of Jacob Smith Park was formed.

1. **NAME.** The name of the Group is "The Friends of Jacob Smith Park".
2. **OBJECTIVES.** The Group is established for the public benefit for the following purposes in the area comprising Jacob Smith Park, Scriven, Knaresborough. In collaboration with the responsible Local Authority, and in accordance with the covenants established by Miss Jacob Smith, the aims of the Group shall be:
 - To help maintain the park in accordance with the Covenants and history of the landscape at all times
 - To develop a management plan including an ongoing status survey in conjunction with Harrogate Borough Council
 - To seek to enhance the maintenance and management of the park to benefit the people of Knaresborough
 - To promote high standards of planting
 - To promote high standards of tidiness
 - To work towards improved safe access for all to the park
 - To raise funds, apply for grants and invite/receive contributions to further the objectives of the Group
 - To identify operational problems, such as vandalism, and suggest solutions
 - To protect and enhance the biodiversity of the area
 - To facilitate communication with the local authorities, organisations and voluntary groups to further the above objectives
3. **MEMBERSHIP.** Membership shall be open to all individuals and representatives of organisations who are interested in furthering the purposes of the Group. All members joining the Group shall be deemed to accept the terms of this Constitution.

Initially subscriptions will not be paid. The Group may decide to levy small subscriptions if necessary to meet essential administrative expenses.

Representatives of organisations or Groups shall be those organisations interested in actively furthering the purposes of the Group. Such members shall appoint a representative to vote on its behalf at all meetings.

4. **MEETINGS.** An agenda shall be agreed by the Chairman and one other Officer and will be distributed at least seven days in advance of all meetings of the Group. The Secretary shall ensure that all members are notified of the date and place of such meetings.

Five members personally present shall constitute a quorum for a meeting of the Group.

Voting – With the exception of changes to the Constitution, decisions put to vote shall be resolved by a simple majority at Ordinary Meetings. Each organisation represented on the Group or each individual member, shall have one vote. The Chairman of the Group shall hold a deliberative as well as casting vote. Representatives of Harrogate Borough Council shall not have a vote.

There will be a minimum of two meetings per financial year.

5. **OFFICERS.** The officers of the Group shall consist of: Chairman, Secretary and Treasurer.

All Officers of the Group shall relinquish their office every year and shall be eligible for re-election at the AGM.

The Officers shall be responsible for the management and administration of the Group.

6. **ANNUAL GENERAL MEETING.** An AGM Must be held each year to receive the Annual Report of the Chairman and the accounts of the preceding year.

7. **DECLARATION OF INTEREST.** It shall be the duty of every member who is any way directly or indirectly interested financially or professionally in any item discussed at any meeting of the Group at which he or she may be present to declare such interest and he or she shall not discuss such item (except by invitation of the Chairman) or vote thereon.

8. **EXPENSES OF ADMINISTRATION & APPLICATION OF FUNDS.** The Treasurer shall, out of the funds of the group, pay all proper expenses of administration and management of the Group. After the payment of administration and management expenses and the setting aside to reserve of such sums as may be deemed expedient, the remaining funds of the Group shall be applied by the Group in furtherance of the purposes of the Group.

The financial year shall run from 1st April to 31st March each year.

The Treasurer shall be responsible for the preparation of Annual Accounts for the Group. The accounts shall be examined by an independent person elected annually at the first meeting in the new year.

All cheques drawn against the Group's funds shall be signed by the Treasurer and one other nominated office-bearer.

The Group shall not undertake any permanent trading activities in raising funds and shall remain a 'not for profit' organisation.

9. **MEDIA.** All press releases shall be agreed with the Chair, in consultation with the Media Officer of Harrogate Borough Council.

10. **AMENDMENTS TO CONSTITUTION.** All proposals for changes to the Constitution shall be signed by two members eligible to vote at an Ordinary Meeting.

The countersigned proposal to change the Constitution must be submitted in writing to the Secretary at least 14 days before a meeting who shall then circulate the proposal to all members and allow seven days for submission of any amendments before calling a meeting. The Constitution may be amended by a two-thirds majority of members present at that meeting.

11. **WINDING UP.** The Group may be dissolved by a two thirds majority of membership voting at a Special General Meeting of the Group confirmed by a simple majority of members voting at a further Special General Meeting held not less than 14 days after the previous meeting. If a motion for the dissolution of the Group is to be proposed at a General Meeting or a special Meeting this motion shall be referred to specifically when notice for the meeting is given. In the event of dissolution, the funds of the Group shall be transferred to one of more institutions having objectives reasonably similar to those herein, as shall be chosen by the Officer and approved at the Meeting of the Group is confirmed.